

# Smt Shweta W/O Vijay Masanagi vs Sri Vijay S/O Ukkundappa Masanagi on 13 March, 2023

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CP No. 100197 of 2022

IN THE HIGH COURT OF KARNATAKA, DHARWAD BENCH

DATED THIS THE 13TH DAY OF MARCH, 2023

BEFORE

THE HON'BLE MRS JUSTICE K.S.HEMALEKHA  
CIVIL PETITION NO. 100197 OF 2022 (-)

BETWEEN:

SMT SHWETA W/O VIJAY MASANAGI  
AGE: 33 YEARS, OCC: HOUSEHOLD WORK,  
R/O. HEMARADDI MALLAMMA COLONY  
R.N.SHETTY ROAD, HUBBALLI,  
TQ. HUBBALLI  
DIST. DHARWAD-580030.

...PETITIONER

(BY SRI. AVINASH BANAKAR, ADVOCATE)

AND:

SRI VIJAY S/O UKKUNDAPPA MASANAGI  
AGE: 52 YEARS, OCC: PRIVATE JOB,  
R/O. SHRIRAM NAGAR, RANEBENNUR  
NOW R/O.H.NO.3/2, C/O SHIVALILA HIEMATH  
HEMARADDI MALLAMMA COLONY

R.N.SHETTY ROAD, HUBBALLI,

TQ. HUBBALLI,

DIST. DHARWAD-580030.

ANNAPURNA  
CHINNAPPA  
DANDAGAL  
Digitally signed by  
ANNAPURNA CHINNAPPA

DANDAGAL  
Location: HIGH COURT OF  
KARNATAKA DHARWAD

...RESPONDENT

(BY SRI. PRUTHVI K S, ADVOCATE FOR SOLE RESPONDENT)

THIS CIVIL IS PETITION FILED U/SEC.24 OF CPC, PRAYING  
THAT THE PETITION M.C. NO. 49/2022 PENDING ON THE FILE OF  
SENIOR CIVIL JUDGE AND JUDICIAL MAGISTRATE FIRST CLASS,  
RANEBENNUR VIDE ANNEXURE-B, MAY KINDLY BE WITHDRAWN  
AND THE SAME MAY BE TRANSFERRED TO THE PRINCIPAL FAMILY

COURT, HUBBALLI WHERE CRL. MISC. NO. 236/2022 IS  
PENDING, IN THE INTEREST OF JUSTICE AND EQUITY.

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CP No. 100197 of 2022

THIS PETITION, COMING ON FOR ADMISSION, THIS DAY,  
THE COURT MADE THE FOLLOWING:

ORDER

Petitioner-wife is before this Court seeking to withdraw M.C.No.49/2022 pending on the file of the Senior Civil Judge and JMFC, Ranebennur, and transfer to the Principal Family Court, Hubballi along with Crl.Misc.No.236/2022.

2. It is not in dispute that the petitioner is the legally wedded wife of respondent and marriage was solemnized on 07.01.2021, Hubballi as per the Hindu religion and customs and traditions. Due to un-cordial relation between the petitioner and the respondent, they are living separately. The husband filed petition seeking for petition under Section 13(1)(ia) and (ib) of Hindu Marriage Act, seeking for dissolution of marriage in M.C.No.49/2022, before the Senior Civil Judge and JMFC, Ranebennur Family Court.

3. The petitioner-wife has filed Crl.Misc.No.236/2022 before Hubballi Court for seeking maintenance that she is residing at parental house in Hubballi, as she is not in position to travel from Hubballi to Ranebennur. The distance between Hubballi and Ranebennur is nearly about 110 K.Ms.

4. Learned counsel appearing for petitioner and learned counsel appearing for respondent.

5. It is undisputed that the petitioner and respondent has residing separately. It is also not in dispute that the Crl.Misc.No.236/2022 is pending consideration before the Hubballi Family Court and respondent-husband appeared and filed his objections. This may be considered by transferring the matter from Court to another. The matter pertaining to the transfer, the convenience of the wife needs to be considered and in the present case petitioner is residing at Hubballi along with her aged parents and distance from Hubballi and Ranebennur is about 110 K.Ms.

6. The Hon'ble Apex Court in catena of judgments in line and latest judgment of Apex Court in the case of N.C.V. AISHWARYA VS. A.S.SARAVANA KARTHIK SHA in civil appeal No.4894 of 2022 has held that at para No.9 which reads as under:

"9. The cardinal principle for exercise of power under Section 24 of the Code of Civil Procedure is that the ends of justice should demand the transfer of the suit, appeal or other proceeding. In matrimonial matters, wherever Courts are called upon to consider the plea of transfer, the Courts have to take into consideration the economic soundness of both the parties, the social strata of the spouses and their behavioural

pattern, their standard of life prior to the marriage and subsequent thereto and the circumstances of both the parties in eking out their livelihood and under whose protective umbrella they are seeking their sustenance to life. Given the prevailing socio- economic paradigm in the Indian society, generally, it is the wife's convenience which must be looked at while considering transfer."

7. Accordingly, this Court pass the following:

ORDER

- a) The Civil Petition is hereby allowed.
- b) The M.C.No.49/2022 pending on the file of the Senior Civil Judge and JMFC, Ranebennur, to be withdrawn and same is transfer to the Principal Family Court, Hubballi along with Crl.Misc.No.236/2022.
- c) The Principal Family Court, Hubballi to assign it to appropriate Court.
- d) No order as to cost.

Accordingly, civil petition stands disposed of.

(Sd/-) JUDGE AC